

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Stephen DiFiore	Team: Squad #05	CCRB Case #: 202300688	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Tuesday, 01/24/2023 8:14 PM	Location of Incident: Tompkins Avenue between Myrtle Avenue and Vernon Avenue	18 Mo. SOL 7/24/2024	Precinct: 79
Date/Time CV Reported Wed, 01/25/2023 11:45 AM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Wed, 01/25/2023 1:08 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Krishawni Denton	11187	967479	PSA 3
2. PO Steven Guerrero	12693	966089	PSA 3
3. PO Alexa Serrano	20206	968125	079 PCT
4. PO Leticia Dumasgalindo	02316	964498	079 PCT
5. Officers			

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Krishawni Denton	Force: Police Officer Krishawni Denton used physical force against § 87(2)(b)	A . Within NYPD Guidelines
B . PO Steven Guerrero	Force: Police Officer Steven Guerrero used physical force against § 87(2)(b)	B . Within NYPD Guidelines
C . PO Alexa Serrano	Force: Police Officer Alexa Serrano used physical force against § 87(2)(b)	C . Within NYPD Guidelines
D . PO Leticia Dumasgalindo	Force: Police Officer Leticia Dumasgalindo used physical force against § 87(2)(b)	D . Within NYPD Guidelines
E . Officers	Abuse: Officers damaged § 87(2)(b) property.	E . Within NYPD Guidelines
F . PO Steven Guerrero	Abuse: Police Officer Steven Guerrero issued an unlawful summons to § 87(2)(b)	F . Substantiated

Case Summary

On January 25, 2023, § 87(2)(b) filed this complaint in person at the PSA 3 stationhouse.

On January 24, 2023, at approximately 8:14 p.m., § 87(2)(b) was on Tompkins Avenue between Myrtle Avenue and Vernon Avenue in Brooklyn when PO Krishawni Denton and PO Steven Guerrero of PSA 3 stopped him for jaywalking. PO Denton and PO Guerrero, along with PO Alexa Serrano and PO Leticia Dumasgalindo of the 79th Precinct, forcibly brought him to the ground (**Allegations A-D: Force, within NYPD guidelines**). As a result of § 87(2)(b) being taken to the ground, a figurine in his sweater pocket sustained damage (**Allegation E: Abuse of Authority, within NYPD guidelines**).

PO Denton issued a jaywalking summons to § 87(2)(b) (Board Review 01). PO Guerrero issued an unlawful disorderly conduct summons to § 87(2)(b) (Board Review 02) (**Allegation F: Abuse of Authority, substantiated**).

The CCRB obtained comprehensive BWC video of this incident (Board Review 03, summarized in Board Review 04-05). All references to video refer to the timestamps in the video player and not to the on-screen timestamps.

Findings and Recommendations

Allegation (A) Force: Police Officer Krishawni Denton used physical force against § 87(2)(b)

Allegation (B) Force: Police Officer Steven Guerrero used physical force against § 87(2)(b)

Allegation (C) Force: Police Officer Alexa Serrano used physical force against § 87(2)(b)

Allegation (D) Force: Police Officer Leticia Dumasgalindo used physical force against § 87(2)(b)

Allegation (E) Abuse of Authority: Officers damaged § 87(2)(b) property.

It is undisputed that § 87(2)(b) crossed Myrtle Avenue mid-block without using the crosswalk. It is further undisputed that § 87(2)(b) initially told officers that he did not have his ID when they requested it. It is also undisputed that the officers on scene forcibly brought § 87(2)(b) to the ground. It is further undisputed that one of § 87(2)(b) items was damaged when it was initially removed from his pocket during his search.

§ 87(2)(b) testified that when he erroneously told the officers that he did not have his ID, the officers told him that he was going to have to go to the stationhouse (Board Review 06). They twisted his arms behind his back and held him face-first against a gate. § 87(2)(b) did not physically react in any way when officers did this. The four officers then pulled him downward toward the ground and handcuffed him. § 87(2)(b) added that he had a figurine of the Pokémon Charizard in his sweater pocket that had been damaged as a result of the officers taking him down, specifically in that the wing and tail had been broken off. § 87(2)(b) discarded the figurine due to the damage and as a result could not provide photographs of it to the investigation.

PO Guerrero's BWC (Board Review 07, beginning at 00:55) shows officers approach § 87(2)(b) and request his ID. When § 87(2)(b) says he does not have it, PO Guerrero says that they will have to take him to the stationhouse and takes out his handcuffs. He then reaches for § 87(2)(b) left arm, and § 87(2)(b) pulls his arm backwards and says, "You're not doing nothing." PO Guerrero continues grappling with § 87(2)(b) as PO Dumasgalindo and PO Serrano arrive on scene. At 01:15, the officers pull him to the ground and apply the handcuffs. At 02:00, PO Denton removes the Charizard figurine from § 87(2)(b) left sweater pocket. The extent of the damage is not clearly visible at this point. At 12:24, PO Denton is placing § 87(2)(b) property in a container.

He first takes a broken wing from the figurine and puts it in the bag. He puts the rest of the figurine inside the bag a few seconds later. § 87(2)(b) tells PO Denton that he broke it, and PO Denton responds that he only took it out of his pocket.

PO Guerrero acknowledged that he and PO Denton brought § 87(2)(b) to the ground in order to get him into handcuffs (Board Review 08). He noted that § 87(2)(b) was grabbing onto the handcuffs as they initially attempted to handcuff him. The purpose for restraining him was to bring him back to the stationhouse after he said that he did not have ID with him. Though PO Guerrero saw § 87(2)(b) place some object in his jacket pocket upon initial approach, he did not actually see the figurine until PO Denton removed it from § 87(2)(b) pockets after he was handcuffed. PO Guerrero denied ever intentionally damaging it or seeing any other officer do so. He also did not believe that the force that he used would have damaged the toy as he maintained that he and PO Denton gently brought § 87(2)(b) to the ground.

Based upon the evidence, the investigation concluded that the damage to § 87(2)(b) figurine was unintentional and incidental to the officers taking him to the ground. As it cannot be determined which of the officers actually caused the damage, the allegation is pleaded against “officers.”

Patrol Guide Procedure 221-01 states that officers may use a reasonable amount of force when it is necessary to take someone into custody (Board Review 09).

As it is undisputed that § 87(2)(b) jaywalked, § 87(2)(g) he alerted the officers that he did not have an ID, § 87(2)(g) his refusal, both verbally and physically, to allow officers to handcuff him, § 87(2)(g)

It is therefore recommended that **Allegations A-D** be closed as **within NYPD guidelines**.

§ 87(2)(g) it is recommended that **Allegation E** be closed as **within NYPD guidelines**.

Allegation (F) Abuse of Authority: Police Officer Steven Guerrero issued an unlawful summons to § 87(2)(b)

It is undisputed that PO Guerrero issued a disorderly conduct summons to § 87(2)(b) for making unreasonable noise (Board Review 02).

§ 87(2)(b) testified that he did not say anything to the officers when he initially crossed the street. However, § 87(2)(b) acknowledged that he yelled and cursed at the officers when they asked for his ID. § 87(2)(b) recalled a single older man getting into his car and watching what was going on, but this man did not get involved in any way. § 87(2)(b) also noted that a few people were walking by and watching what happened, but he did not remember anything they had said, if at all, to the officers.

PO Guerrero testified that he started watching § 87(2)(b) after he crossed the street to see if he was okay. When § 87(2)(b) noticed him watching, he began to shout, “Suck my dick,” and “What the fuck do you want?” at the officers. There were a few pedestrians on the sidewalk, but he could not remember how many or how, if at all, they reacted to § 87(2)(b) comments. Once the officers placed him in handcuffs after turning the corner, § 87(2)(b) again shouted, “Suck my dick.” The noise was specifically unreasonable because § 87(2)(b) was loud, cursing, and causing a crowd to gather across the street, outside the liquor store located at 108 Tompkins Avenue. PO Guerrero did not remember how many people were in the group, how far along the block the group was spread, or whether they were still inside or outside the liquor store. He remembered seeing people holding up their phones as if to record and hearing voices. He could not remember how many voices or what they were saying.

PO Guerrero's BWC video shows that there was no crowd gathered across the street from where § 87(2)(b) was apprehended (Board Review 07, at approximately 01:46). PO Serrano's BWC shows that § 87(2)(b) asked the male bystander entering his parked car, "You see this shit, bro?" There was no reaction by the man or any of the officers in response to this comment (Board Review 10, at approximately 01:11). At 01:16, PO Serrano's camera captures more of the opposite sidewalk and further affirms that there was no crowd gathered on the block.

Based on video evidence, the investigation determined that there was no crowd gathered outside the liquor store recording the incident as PO Guerrero recounted.

A person is guilty of disorderly conduct when, with an intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof, he or she: (1) engages in fighting or in violent, tumultuous, or threatening behavior; (2) makes unreasonable noise; (3) uses abusive or obscene language, or makes an obscene gesture; (4) without lawful authority, disturbs any lawful assembly; (5) obstructs vehicular or pedestrian traffic; (6) congregates with other persons in a public place and refuses to comply with an order to disperse; or (7) creates a hazardous or physically offensive condition. New York Penal Law §240.20 (Board Review 11).

"Critical to a charge of disorderly conduct is a finding that defendant's disruptive statements and behavior were of a public rather than an individual dimension." "The risk of public disorder does not have to be realized but the circumstances must be such that the defendant's intent to create such a threat (or reckless disregard thereof) can be readily inferred." In determining whether such an intent can be inferred, courts use "a contextual analysis that turns on the consideration of many factors, including 'the time and place of the episode under scrutiny; the nature and character of the conduct; the number of other people in the vicinity; whether they are drawn to the disturbance and, if so, the nature and number of those attracted; and any other relevant circumstances.'" *People v. Baker*, 20 N.Y.3d 354 (2013) (Board Review 12). In *Baker*, the Court of Appeals found that "isolated statements using coarse language to criticize the actions of a police officer, unaccompanied by provocative acts or other aggravating circumstances, will rarely afford a sufficient basis to infer the presence of the 'public harm' mens rea necessary to support a disorderly conduct charge."

§ 87(2)(g)

§ 87(2)(b) only addressed a single bystander, and the only statement § 87(2)(b) made to him was asking if he was watching the incident. Moreover, the video footage shows that no crowd of bystanders gathered in response to § 87(2)(b) statements. § 87(2)(g)

It is therefore recommended that **Allegation F** be closed as **substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 13).
- PO Guerrero has been a member of the NYPD for four years and has been a subject in eight other CCRB complaints and 17 other allegations, none of which were substantiated, but all except two of which are still under investigation. § 87(2)(g)
- PO Denton has been a member of the NYPD for four years and has been a subject in 12 other CCRB complaints and 26 other allegations, of which two were substantiated:

○ § 87(2)(g)

